



DECISION

Complaint No. : POS/1160/2020/KC/F-04

Name and address of the complainant : Syed Wazir Ali Shah, C/o Mumtaz Ali, Bookshop, Marouara Goth, Opp. Chappal Sun City, Grammer School Building, KDA Scheme-33, Memon Hospital, Karachi.

Name of the Agency Complained against : Revenue Department

Name & Designation of Investigating Officer : Syed Ali Mumtaz Zaidi, (PAS), Advisor-F

Vetted by : --

Subject : **REQUEST FOR TRANSFER OF AGRICULTURE LAND LOCATED AT MITHIANI AND KHUHAWAR, DISTRICT NAUSHAHRO FEROZE IN COMPLAINANT'S NAME IN LIEU OF FOTI KHATA.**

THE COMPLAINT:

Syed Wazir Ali Shah in his complaint dated 02.03.2020 stated that his grandfather late Syed Ali Shah had Agricultural land measuring 39 Acres in Mithyani and 2 acres in Khuwaher, District Naushahro Feroze. He approached concerned Revenue Authorities for the transfer of said land in his name in lieu of Foti Khata. The Section Officer (Revenue) Board of Revenue Sindh directed the Deputy Commissioner, District Naushahro Feroze to examine the case and take necessary action as per rules who forwarded the same to Assistant Commissioner Naushahro Feroze but both the officers failed to resolve his grievance. He, therefore, solicited intervention of this Institution.

PROCEEDINGS:

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) and the matter was taken up with the Deputy Commissioner, District Naushahro Feroze, Karachi.
3. In response the Mukhtiarkar vide letter dated 10.12.2021 stated that report was called from Supervising Tapedar / Tapedar Tapa Mithiani who reported that the record of Deh Mithiani and Khuhawar-II was burnt during the assassination of Mohtarma Benazir Bhutto on 27th December 2007 and applicant never filed appeal for the reconstruction of said record. He requested to direct the complainant to file appeal before Deputy Commissioner Naushahro Feroze for the reconstruction of record of the land belonging to his deceased grandfather as per SOPs of Board of Revenue Sindh @ Hyderabad.
4. In order to diffuse pendency at the end of concerned quarters, hearings were fixed by issuing notices to the Complainant and Mukhtiarkar (Revenue), District Naushahro Feroze.

5. On 25.08.2025 the Mukhtiarkar Revenue Naushahro Feroze appeared in person and submitted a report dated 25.08.2025 reiterating the same contents as stated earlier in letter dated 10.12.2021 as mentioned above.

6. Recently the complainant has also intimated that he has filed an Appeal before the Deputy Commissioner, District Naushahro Feroze for the reconstruction of the Revenue Record as required under the Revenue laws.

FINDINGS:

7. Since the complainant has availed the appropriate legal remedy before the designated authority, no further intervention or proceedings are required to be undertaken by this Institution at this stage.

DECISION:

8. I, in exercise of the powers vested in me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh, Act 1991 (amended up to date) hereby direct the Deputy Commissioner, Naushahro Feroze to proceed with the Appeal filed by the complainant and decide the same at his earliest in accordance with law.

Given under my hand and seal of office



Sd /-

(MUHAMMAD SOHAIL RAJPUT)

Sitara-e-Imtiaz. PAS

Ombudsman Sindh

Karachi, dated 08th December, 2025